

Terms & Conditions

Effective Date: July 3, 2026

1. Welcome & Introduction

By accessing and using the Qhawelethu Wellness Counselling website and its services, you enter into a binding agreement and agree to comply with these Terms & Conditions.

2. Definition of Services & Scope of Practice

Our services consist of online telehealth and wellness counselling provided by certified specialists.

- **Not a Medical Substitute:** These services do not constitute medical, psychiatric, or psychological diagnosis or treatment of a crisis nature.
- **No Emergency Services:** We do not provide crisis intervention or emergency medical services. If you are experiencing a medical emergency, please contact your local emergency services immediately.

3. Booking, Appointments, and Cancellations

By selecting a service and time slot, you agree to commit to the scheduled session.

- Cancellations or rescheduling must be done with reasonable notice as outlined during the booking process.
- No-shows or late cancellations may incur a standard fee to compensate the practitioner for their reserved time.

4. Data Privacy & Form Consent (POPIA Compliance)

When you submit information via the 'Step 3 Details' form, you are explicitly agreeing to the collection, processing, and secure storage of your personal data under the regulations of South Africa's Protection of Personal Information Act (POPIA).

- **Information Collected:** We collect your Name, Date of Birth, Email, Phone Number, Location (City/Province), and your stated wellness goals.
- **Purpose of Collection:** This data is strictly used to facilitate contact, assess your counselling needs, and verify your identity prior to providing services.
- **Data Safeguards:** Your personal information is protected using industry-standard security safeguards to prevent unauthorized access or data breaches.
- **Consent Checkboxes:** By selecting checkboxes on our forms, you are providing verifiable consent for your data to be processed for care management and shared strictly with the assigned wellness professionals. You have the right to request access to or deletion of your personal information at any time.

5. Telehealth Regulations & Service Expectations

Our online therapy sessions are conducted in accordance with the Health Professions Council of South Africa (HPCSA) guidelines, specifically Booklet 10: Guidelines for the practice of Telehealth.

- Telehealth involves using secure electronic communication to replicate face-to-face consultations as safely and practically as possible.
- Practitioners are held to the same ethical standards of professional practice during online sessions as they are during in-person visits.
- Users agree to participate in any necessary subsequent intake processes required to verify their clinical suitability for online telehealth prior to the first session.

6. User Responsibilities & Conduct

- Users must provide accurate, current, and complete information on all intake forms.
- Users must maintain respectful conduct toward all counsellors and staff.
- Recording of telehealth sessions by the user without explicit written consent from the counsellor is strictly prohibited to protect the privacy of all parties.

7. Payments and Billing

Users agree to the fee structure provided prior to the confirmation of any appointment. Disputes regarding billing must be handled through the official contact channels provided on the website before seeking external resolution.

8. Limitation of Liability & Indemnification

To the maximum extent permitted by applicable law, Qhaweletu Wellness Counselling, its project owners, and affiliated professionals shall not be held liable for any indirect, incidental, or consequential damages arising from the use of this website or the telehealth services. Users agree to indemnify and hold harmless the project owner and practitioners against any claims arising from the user's violation of these terms.

9. Intellectual Property

All content, branding, logos, portraits, and website design elements are the intellectual property of Qhaweletu Wellness Counselling and its creators. Unauthorized reproduction or distribution is prohibited.

10. Governing Law & Jurisdiction

These Terms & Conditions are governed by the laws of the Republic of South Africa. Any disputes arising from these terms or the provision of services shall be subject to the exclusive jurisdiction of the courts located in Pretoria, Gauteng, South Africa.